

24STCV15115 24STCV15115

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-06-23

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C407%2C06%2F23%2F2026

Source SHA-256: ae47d93b186e44307de67c3519fc93c6c193963be73b8b06e69a18fef0dd6429

Case Number: 24STCV15115 Hearing Date: June 23, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June

23, 2026 TRIAL DATE: April 12, 2027

CASE: Lilly Property Management v. United Agencies, Inc.,

et al.

CASE NO.: 24STCV15115

DEFENDANT GREAT AMERICAN

E&S INSURANCE COMPANY'S MOTION FOR RECONSIDERATION

MOVING PARTY: Defendant

Great American E&S Insurance Company

RESPONDING PARTY: Plaintiff

522 Wilshire Blvd., LLC

I. BACKGROUND

On February 9, 2026, Plaintiff, 522 Wilshire

Blvd., LLC, served Defendant, Great American E&S Insurance Company ("Great

American"), with three deposition notices: (1) a Notice of Deposition of

Preveen Sathananthan, a former Great American employee, for March 9, 2026; (2)

a Notice of Deposition of Gabriella Garofalo-Johnson, a Great American

party-affiliated witness, for March 10, 2026; and (3) a Notice of Deposition of

Great American's Person Most Qualified.

On March 6,

2026, Defendant filed a motion for protective order.

On April 27,

2026, the court denied the motion and awarded Plaintiff sanctions in the sum of

\$3,625.

On May 7,

2026, Defendant filed this motion for reconsideration.

On June 9,

2026, Plaintiff filed an opposition.

At the time

of this writing, no reply had been filed.

II. LEGAL STANDARD

"When an application for an order has been made to a judge,

or to a court, and refused in whole or in part, or granted, or granted

conditionally, or on terms, any party affected by the order may, within 10 days

after service upon the party of written notice of entry of the order and based

upon new or different facts, circumstances, or law, make application to the

same judge or court that made the order, to reconsider the matter and modify,

amend, or revoke the prior order.” (Code Civ. Proc. § 1008, subd. (a).) “A

party seeking reconsideration also must provide a satisfactory explanation for

the failure to produce the evidence at an earlier time. [Citation.]” (New

York Times Co. v. Superior Court (2005) 135 Cal.App.4th 206, 212.) “A

motion for reconsideration is properly denied where it is based on evidence

that could have been presented in connection with the original motion.” (Morris

v. AGFA Corp. (2006) 144 Cal.App.4th 1452, 1460.) “ “ “ “

III. DISCUSSION

Great

American moves for reconsideration of the court’s April 27, 2026 order because

(1) the order mistakenly referred to Great American as “Great Western”; (2) contained

misstatements of fact regarding Great American’s conduct; and (3) the order

does not accurately reflect Great American’s arguments for a protective order. Great American also urges reconsideration of

the sanctions order.

These

arguments fail. The court's mistaken

references to "Great Western" do not affect the analysis and is now ordered

corrected nunc pro tunc. The court's purported

misstatement of fact overlooks that the court was reciting the allegations of

the Plaintiff's operative pleading. Importantly,

Great American does not identify any new fact, circumstances, or law that

warrant reconsideration. Rather, Great

American takes this opportunity to relitigate the motion for protective

order. The court considered the filings

and oral arguments of counsel before taking the matter under submission and

issuing a final order. Great American

does not show reconsideration of the April 27, 2026 order is warranted on any

ground.

IV. CONCLUSION

The motion

for reconsideration is DENIED.

Plaintiff's

request for further sanctions is DENIED.

The court's

April 27, 2026 order is corrected nunc pro tunc as follows: striking references

to “Great Western” and in its place, inserting “Great American”.

Plaintiff to give notice, unless

waived.

Dated: June 23, 2026

Brock T. Hammond

Judge of the

Superior Court